

1 official's immunity. Notwithstanding such a request, the Department of State could determine
 2 that a foreign official is not immune. That would occur, for example, should the Department of
 3 State conclude that the conduct alleged was not taken in an official capacity, as might be the case
 4 in a suit challenging an official's purely private acts, such as personal financial dealings. In
 5 making that determination, it is for the Executive Branch, not the courts, to determine whether
 6 the conduct alleged was taken in a foreign official's official capacity. *See Hoffman*, 324 U.S. at
 7 35 ("It is . . . not for the courts to deny an immunity which our government has seen fit to allow,
 8 or to allow an immunity on new grounds which the government has not seen fit to recognize.").

10 Here, the State of Israel has asked the Department of State to recognize the immunity of
 11 Barak. Diplomatic Note from Israel at 1. After careful consideration of this matter, including a
 12 full review of the pleadings and other materials relied upon by Plaintiffs, the Department of State
 13 has determined that Barak is immune from suit. *See* Ex. 1 (Letter from Brian J. Egan, Legal
 14 Adviser, Department of State, to Benjamin C. Mizer, Principal Deputy Assistant Attorney
 15 General, Civil Division, Department of Justice, requesting that the United States suggest the
 16 immunity of Barak). All of Plaintiffs' claims challenge actions undertaken by Barak in his
 17 former role as Israeli Minister of Defense. Indeed, Plaintiffs allege that Barak "is sued in his
 18 personal capacity for acts taken in his official capacity." Opp'n to Def.'s Mot. to Dismiss at 25
 19 (ECF No. 37) [hereinafter Opposition]. Plaintiffs note in their Complaint that Barak "held the
 20 position of Minister of Defense during the planning of the IDF operation," and contend that
 21 "[w]hile serving in that position[,] he planned and commanded the attack and interception of the
 22 Flotilla"—an operation that allegedly "resulted in the torture and extrajudicial killing of Furkan
 23 Doğan." Compl. ¶¶ 3, 8–9. Plaintiffs reiterate in their Opposition that their challenge stems
 24 from Barak's "planning and commanding the attack on the Gaza Freedom Flotilla resulting in the
 25 torture and extrajudicial killing of their son." Opp'n at 1.
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